COMMONWEALTH OF MASSACHUSETTS
Supreme Judicial Court

SUFFOLK, ss. Appeals Court No. 2019-P-1602

RAHIMAH RAHIM, Plaintiff-Appellant,
v.
SUFFOLK COUNTY DISTRICT ATTORNEY, Defendant-Appellee.

Application for Direct Appellate Review

On Appeal from a Judgment of the Superior Court for Suffolk County

On Behalf Of Rahimah Rahim

Kate R. Cook (BBO# 650698)
cook@sugarmanrogers.com
Tristan P. Colangelo (BBO# 682202)
colangelo@sugarmanrogers.com
SUGARMAN, ROGERS, BARSHAK & COHEN, P.C.
101 Merrimac Street, Suite #900
Boston, MA 02114
(617) 227-3030

Matthew R. Segal (BBO# 654489)
msegal@aclum.org
Jessie J. Rossman (BBO# 670685)
jrossman@aclum.org
Laura Rotolo (BBO# 665247)
lrotolo@aclum.org
ACLU FOUNDATION OF MASSACHUSETTS, INC.
211 Congress Street
Boston, MA 02110
(617) 482-3170

Attorneys for Rahimah Rahim

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REQUEST FOR DIRECT APPELLATE REVIEW

Appellant Rahimah Rahim respectfully asks this Court to grant direct appellate review of this case, which presents a significant question of first impression: when a Massachusetts agency receives, uses, and retains documents from a federal agency, can the two agencies shield the documents from disclosure under the Massachusetts Public Records Law by calling the receipt a "loan"?

In June 2015, Boston resident Usaamah Rahim was shot and killed during an encounter with officers from the Boston Police Department (BPD) and the Federal Bureau of Investigation (FBI). In August 2016, the Suffolk County District Attorney issued a 10-page report explaining the District Attorney's decision not to criminally charge the officers who shot Mr. Rahim.

Mr. Rahim's mother, Ms. Rahimah Rahim, sought access under the Massachusetts Public Records Law (PRL) to the records underlying the District Attorney's investigation. These records included documents sent by the FBI under a cover letter stating that they were "loaned" to the District Attorney and should not be provided in response to "any request made under the Massachusetts Freedom of Information Act." Citing this language, the District Attorney denied Ms. Rahim's request. The Superior Court below upheld this decision.

There is no dispute that the District Attorney requested records from the federal government as a part of its investigation into Mr. Rahim's death or that it physically received these records, relied upon them to exonerate the officers, and retained them for years. But this Court's precedents do not expressly address whether, notwithstanding those facts, the District Attorney and the FBI can shield the records from disclosure by agreeing to characterize them as being on loan.

Under fundamental principles of statutory interpretation, the answer must be no. The PRL expressly applies to any records "made or received" by a Massachusetts agency. See G.L. c. 66, § 10 et seq. and G.L. c. 4, § 7(26). This Court has already held that a Massachusetts agency cannot circumvent its PRL obligations through a confidentiality agreement with a private party, noting that such a contract cannot "trump the public records law and the [state agency's] obligation to comply with the law's requirements." *Champa v. Weston Pub. Schools*, 473 Mass. 86, 98 (2015). The result should be no different when a

Massachusetts agency contracts with a federal agency; Massachusetts agencies simply lack the authority to contract their PRL obligations into oblivion.

To be sure, the Massachusetts PRL cannot be used to compel a federal agency to disclose a document in its possession. So if a federal agency wants to keep a document from people of Massachusetts, it can retain physical possession of that document and litigate any FOIA requests it might receive. But, absent an applicable exemption under the Massachusetts PRL, it cannot provide the document to Massachusetts state agencies and shield it from Massachusetts state residents. Once a document is "made or received" by a Massachusetts agency, that agency's disclosure obligations are governed by Massachusetts law.

STATEMENT OF PRIOR PROCEEDINGS

Desperate to understand more about the events leading up to her son's death, Ms. Rahim filed a public records request with the District Attorney on June 16, 2017. See Add. 34.[1] After the District Attorney denied Ms. Rahim's request, Ms. Rahim filed a complaint in the Superior Court on July 24, 2017. See Add. 28, 43, and 45. Ms. Rahim requested declaratory relief stating that the requested records ("Records") were public records under the PRL because they had been received by, and were in the possession of, the District Attorney and were not otherwise exempt from public disclosure pursuant to a statutory exemption. She also asked for injunctive relief ordering the production of the Records, and sought to enjoin the District Attorney from destroying or removing the Records until the dispute was resolved.[2]

On August 2, 2017, the Superior Court (Leighton J.) heard argument on the request for preliminary injunctive relief and denied Ms. Rahim's request for a preliminary injunction on August 4, 2017. See Add. 47.

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[1] A certified copy of the docket entries is appended hereto. See Addendum ("Add.") 26.

[2] The motion for a temporary restraining order was filed as a result of the District Attorney's initial refusal to provide Ms. Rahim with assurances that it would maintain possession of the Records until Ms. Rahim could file her complaint for judicial resolution. After the Superior Court granted Ms. Rahim's request for a hearing on short notice, the District Attorney agreed to maintain possession of the Records and entered a stipulation to this effect on July 25, 2017.

Without discovery, both parties moved for summary judgment. On June 11, 2019, the Superior Court (Leighton, J.) denied Ms. Rahim's motion for summary judgment, and allowed the District Attorney's motion for summary judgment. See Add. 50. The Superior Court entered judgment for the District Attorney on June 12, 2019, and Ms. Rahim timely filed her Notice of Appeal on August 9, 2019. See Add. at 59.

STATEMENT OF FACTS RELEVANT TO APPEAL

A. The District Attorney's receipt of the Records and investigation into Mr. Rahim's death

On June 2, 2015, Mr. Rahim was shot and killed. The District Attorney opened an investigation into Mr. Rahim's death under its statutory obligation to investigate all "cases of unnatural or suspicious death" and to "direct and control the investigation of the death and [] coordinate the investigation with the office of the chief medical examiner and the police department within whose jurisdiction the deaths occurred." See G.L. c. 38, § 3, § 4. As a part of the investigation, the District Attorney requested records from the FBI, which the District Attorney received on June 5, 2015. See Add. 61.

In sending the records to the District Attorney, the FBI included a cover letter claiming that, "the FBI cannot authorize the further release of the records to any third party outside your office," including "any request made under the Massachusetts Freedom of Information Act." See Add. at 61. The letter then purported to establish that the Records were merely being "loaned" to the District Attorney stating:

> By accepting these records, it is specifically understood they are being loaned to your agency and remain the property of the FBI through the Department of Justice and, if any third party request is made for them, they will not be provided to such requestor without the prior written permission of the FBI.

See Add. 61. However, the FBI permitted the District Attorney to use the Records "at trial" or to otherwise "advance" the District Attorney's investigation. See Add. 61.

This investigation culminated in the release of a ten-page report dated August 24, 2016 (the "Findings Report"). See Add. 62. In concluding that the "officers' use of force was a lawful and reasonable exercise of self-defense and defense of others," and that the officers would not be criminally charged for killing Mr. Rahim, the Findings Report noted that the investigation included a review of the FBI documents "provided to [the] office on June 5, 2015." See Add. 63.

B. Ms. Rahim's public records request and the District Attorney's response

On June 16, 2017, Ms. Rahim mailed a public records request to the District Attorney seeking records pertaining to the fatal shooting of her son, including:

> All records relating to the events that took place on June 2, 20[15], with regard to Mr. Rahim, including video, police reports, police officer or witness statements, audio recordings, or transcripts, call logs, and any records identifying the officers involved in his attempted arrest, records shared with other federal, state, or local agencies, photographs, and autopsy reports.

See Add. 34.

The District Attorney served its first response to Ms. Rahim on July 20, 2017, denying the request in full. See Add. 43. Relevant to this appeal, the District Attorney supported the blanket denial of the FBI documents by explaining that these "loaned" documents were in the "temporary custody" of the District Attorney, but were "the property of the FBI" and "are not under the control" of the District Attorney. Days later, the District Attorney served a supplemental letter that broadly claimed the Records were exempt from the PRL under the investigatory exemption. See Add. 45. This supplemental response did not include any information describing the withheld records or justifying the application of this exemption.

C. Cross-motions for summary judgment and the District Attorney's Vaughn index

After Ms. Rahim filed her complaint on July 24, 2017, the parties filed cross-motions for summary judgment that primarily addressed two issues: (1) whether the Records are "public records" as defined by Massachusetts law and (2) whether the Records, although "public records" are exempt from disclosure pursuant to the investigatory exemption to the PRL, G.L. c. 4, § 7(26)(f). At a summary judgment hearing on April 26, 2018, Ms. Rahim argued that the District Attorney needed to provide a sufficient description of both the withheld documents and the justification for their withholding to allow the Court and Ms. Rahim to evaluate whether the invocation of the investigatory exemption was proper. Accordingly, she asked the Court to order the District Attorney to produce a Vaughn index describing the withheld documents, produce the documents under a protective order, or produce the documents for in camera review. See Add. 72. The Court continued the hearing for 30 days and asked the parties to confer and consider these three options. See Add. 74-75.

On June 5, 2018, the District Attorney's Office provided 56 pages of responsive records to Ms. Rahim as well as a Vaughn index for the remaining withheld documents. The Vaughn index was limited to broad descriptions of the withheld documents which frequently omitted the author, recipient and date of creation of the record. It also provided an identical justification for the application of the exemption to dozens of separate records, and failed to identify any segregable, non-exempt portions for a single document. See Add. 76.

D. The FBI's statement of interest and the Superior Court's decision

On July 11, 2018, while the parties' cross-motions for summary judgment were pending, the United States Attorney for the District of Massachusetts filed a statement of interest on behalf of the FBI. See Add. 109. The Statement of Interest argued that the documents sent by the FBI remained federal records which belonged to the federal government, that the supremacy clause prevented the District Attorney from disclosing the records under the Massachusetts PRL, and

that law enforcement concerns militated against disclosing the documents.[3]

The Superior Court issued its decision in June 2019 upholding the District Attorney's refusal to disclose the Records. To begin, the Court held that the Records "are not public records under the Massachusetts Public Records Law" because they "are on loan from the FBI." Add. 53. To reach this conclusion, the Court interpreted the statutory language "made or received" to "indicate[] ownership to be considered a public record." Add. 54. The Court also held that, even if the Records were subject to the Massachusetts PRL, they were exempt under the investigatory materials exemption. Relying on the Vaughn index, the Court was "satisfied" that this exemption applied because "the Records are from the FBI and regard confidential investigative techniques and procedures." Add. 55. Finally, the Court held that even if the documents were "public records" under the Massachusetts PRL, the supremacy clause of the U.S. Constitution would preclude their disclosure because it would require that any dissemination occur "pursuant to federal law, not state law." Add. 56.

STATEMENT OF ISSUES OF LAW RAISED BY APPEAL

This appeal raises the following questions, all of which were raised and properly preserved before the Superior Court.

1. Massachusetts law defines public records as documents that are "made or received" by a Massachusetts agency. There is no exemption for records "loaned" to a Massachusetts agency by the federal government. When a Massachusetts government agency requests, receives, and uses records from a federal government agency, are they "public records" within the meaning of the Massachusetts Public Records Law, notwithstanding an agreement by the Massachusetts agency and the federal agency to characterize the transfer of these records as a "loan"?

[3]Ms. Rahim sought to strike any new facts asserted in the FBI's Statement of Interest. This was in addition to Ms. Rahim's pending motion to strike disputed facts including portions of affidavits proffered by the District Attorney in the parties' statement of facts. See Add. 26, Docket entry No. 15. Neither motion was decided by the Superior Court.

2. When a Massachusetts agency receives and possesses records it obtained from a federal agency, can a Massachusetts court order the disclosure of those records pursuant to the Public Records Law, without violating the supremacy clause?
3. In this case, were the Records unlawfully withheld under the investigatory exemption where the District Attorney provided only generalized descriptions of the documents and identical justifications for the application of the exemption to dozens of records?

BRIEF STATEMENT OF ARGUMENT

I. THE SUPERIOR COURT ERRED IN RULING THAT THE RECORDS WERE NOT SUBJECT TO THE PRL BECAUSE THEY WERE ON LOAN FROM THE FEDERAL GOVERNMENT

The plain text of the Massachusetts Public Records Law governs documents "made or received" by a Massachusetts agency, without regard to whether such documents are supposedly on loan from somewhere else. The PRL defines "public records" to include all documents "made or received by any officer or employee of any agency . . . or authority of the commonwealth, or of any political subdivision thereof[.]" G.L. c. 4, § 7(26) (emphasis supplied). "The definition sweeps in a wide array of documents and data made or received by employees, agencies, or other instrumentalities of the Commonwealth." *PETA v. Dept. of Agricultural Resources*, 477 Mass. 280, 281 (2017).

Consistent with the plain text of the statute, this Court has repeatedly made clear that a Massachusetts agency's making or receipt of a document, and not the agency's property interest in the document, determines its obligations under the PRL. See *Cape Cod Times v. Sheriff of Barnstable County*, 443 Mass. 587, 593 (2005) (records sheriff characterized as "private" which were made or received by the sheriff subject to the PRL); *Globe Newspaper Co. v. District Attorney for Middle Dist.*, 439 Mass. 374, 382-83 (2003) (entity subject to PRL in possession of records must produce them, regardless of whether records originated from different governmental entity). So long as "the item sought is a [] record that could be obtained from the [custodian], it is a public record." *Globe Newspaper Co.*, 439 Mass. at 383. Indeed, this Court has already held that the law does not permit

Massachusetts government entities to enter into non-disclosure agreements with private parties to avoid compliance with the PRL. *Champa*, 473 Mass. at 98.

Here, the Records were received by the District Attorney and therefore meet the PRL's definition of public records. The Superior Court ruled otherwise, based on the FBI and the District Attorney's assertion that the Records were "on loan," but that characterization has no bearing on the application of the PRL. The PRL's text contains no language that would permit a Massachusetts agency to shield from disclosure documents that it indisputably received, simply by agreeing with the provider of those documents that they are "on loan." In this case, the District Attorney requested, received, retained and relied upon the Records when performing official functions. It cannot now claim that it never "received" them for purposes of the PRL.

A contrary rule would invite substantial mischief. If Massachusetts agencies could avoid having to disclose documents they receive simply by agreeing to treat the receipt as a loan, such agreements will surely proliferate. And the public's knowledge will just as surely suffer. This would severely undermine the PRL, which does not grant Massachusetts agencies the discretion to pick and choose which records the public can access.

II. THE SUPERIOR COURT MISAPPLIED THE SUPREMACY CLAUSE

The Superior Court alternatively held that the PRL did not apply to the Records because "the supremacy clause requires [they] be disseminated, if at all, pursuant to federal law, not state law." Add. 56. That holding is also incorrect.

The supremacy clause does not control this case because there is no pertinent conflict between federal law and the Massachusetts PRL. As the Superior Court noted, the supremacy clause "ensure[s] that, in a conflict with state law, whatever Congress says goes." Add. 56. (quoting *Boston Med. Ctr. Corp. v. Sec'y of the Exec. Office of Health and Human Svcs.*, 463 Mass. 447, 461 (2012)). And here, Congress has not issued any command that conflicts with the Massachusetts Legislature's commands concerning records received by Massachusetts agencies. The FBI voluntarily gave the Records to the District Attorney, knowing that the Records would be possessed by a Massachusetts agency. Contrary to the District Attorney's assertion, neither the federal FOIA nor any other federal law purports to bar Massachusetts agencies from being required to produce federal documents they

have received under the PRL. See *Progressive Animal Welfare Soc. V. Univ. of Washington*, 125 Wash. 2d 243, 265-66 (1994) ("FOIA does not contain an express preemption provision. . . FOIA may be said to expressly decline preemptive effect.") Add. 127; see also *Missouri Prot. & Advocacy Servs. v. Allan*, 787 S.W. 2d 291, 293 (Mo. App. 1990) (declining to apply FOIA exemption to federal document received by state agency and ordering disclosure under state public records law). Add. 158.

Thus, by handing documents to a Massachusetts agency, the FBI divested itself of any ability to invoke the supremacy clause to control whether the Records would need to be disclosed under state law. In situations like this, where the federal government transfers documents to a state agency, the documents have been found subject to state public records law. See *Harper v. Missouri State Highway Patrol*, 2019 WL 5699937, *6-7 (2019) ("the FBI surrendered its control of the FBI reports and the [state agency] retained it" and therefore the records are public records subject to the state Sunshine Law) Add. 148.; see also *Missouri Prot. & Advocacy Servs.*, 787 S.W. 2d at 293-95 (Mo. App. 1990) (holding preliminary report drafted by federal Department of Education and sent to state education department was subject to disclosure under the state Sunshine Law) Add. 158.[4]

The FBI cannot both hand over the Records to the District Attorney and claim that they cannot be publicly disseminated in accordance with state law. By the same token, the District Attorney cannot accept the Records and maintain possession of them for over two years (including a period of eleven months after concluding the investigation which prompted its request for the Records), and continue to claim the Records are merely on loan and not subject to the PRL.

[4] *United States v. Napper*, 694 F. Supp. 897 (N.D. Ga 1988), *aff'd* 887 F.2d 1528 (11th Cir. 1989), cited by the Superior Court below, Add. 163, did not hold otherwise. There, the question before the Court was whether the federal government could require the city government to return documents previously provided by the FBI. *Id.* at 1529 ("We view this as a simple case involving the right of the United States to obtain its own documents loaned to a state agency[.]"). Those documents had already been released under the state public records law, and as *Napper* noted, the federal government "has not sought from intervenors copies of the already released documents, nor does it attempt in this litigation to suppress information already made public." *Id.* at 1530. Add. 163.

III. THE SUPERIOR COURT INCORRECTLY RULED THAT THE INVESTIGATORY EXEMPTION APPLIES.

As a final basis for affirming the District Attorney's withholding of documents, the Superior Court held that even if the Records were subject to the PRL, they were exempt from disclosure under the investigatory exemption. That conclusion is erroneous for at least two reasons.

First, there is no ongoing investigation here. Mr. Rahim is deceased, and his only alleged co-conspirators have been convicted and sentenced. It is hard to imagine what prejudice will befall any ongoing or future law enforcement activity if these records are disclosed or how their disclosure would not be in the public interest. See e.g., *WBZ-TV4 v. District Attorney for Suffolk District*, 408 Mass. 595, 604 (1990) (recognizing that upon conclusion of investigation "future disclosure may be appropriate"); *Messier v. Bledsoe*, Case No. 97-6560-G, 1998 WL 140099 at *1-2 (Mass. Super. Ct. Mar. 27, 1998) (holding investigatory exemption not applicable where there is no ongoing criminal investigation, records did not contain confidential investigative techniques or names of confidential informants).

Second, the District Attorney's generalized descriptions of the withheld documents and blanket assertions that they fall under the investigatory exemption fail to satisfy the PRL's required specificity. "There is no blanket exemption" for law enforcement documents, "nor does the investigatory materials exemption extend to every document that may be placed within what may be characterized as an investigatory file." *Bougas v. Chief of Police of Lexington*, 371 Mass. 59, 65 (1976). Instead, the District Attorney must describe each withheld document, justify the application of the exemption to each individual record, and attempt to segregate and produce any non-exempt portions. See G.L. c. 66, § 10; *Champa*, 473 Mass. at 86 ("The fact that the [records] fall within the coverage of [an exemption] does not end the matter. The public records law specifically contemplates redaction of material that would be exempt, to enable the release of the remaining portions of a record."). It did not do so here.

Instead, the District Attorney's Vaughn index lacks any detail that would permit the Court or Ms. Rahim to determine whether the exemption was properly invoked. Permitting the custodian of the records to therefore decide "unilaterally, without any oversight, what documents are subject to disclosure and what documents are exempt is wholly inconsistent with the purpose of G.L. c. 66, § 10."

Worcester Telegram & Gazette Corp. v. Chief of Police of Worcester, 436 Mass. 378, 385 (2002).

WHY DIRECT APPELLATE REVIEW IS APPROPRIATE

Direct appellate review is appropriate where an appeal presents (1) questions of first impression or novel questions of law; (2) state or federal constitutional questions; or (3) questions of substantial public interest. See Mass. R. App. P. 11(a). This case presents all three types of questions.

First, this is a question of first impression. Although this Court has held that a Massachusetts agency cannot circumvent the PRL by contract with a private entity, see *Champa*, 473 Mass. at 98, it has not expressly addressed a Massachusetts agency's attempt to evade the PRL by entering a "loan" agreement with a federal agency to physically receive and retain records for months on end and to use the records for official purposes on the promise the records will not be produced to the public.

Second, this case presents a question concerning the United States Constitution. Specifically, it asks whether the supremacy clause prevents the Massachusetts Legislature from requiring a Massachusetts agency to disclose documents it has received from a federal agency.

Third, the public interest in these questions is substantial. The PRL is grounded in the understanding that transparency is fundamental to our democracy. Under the PRL, "there shall be a presumption that the record sought is public, and the burden shall be upon the custodian to prove with specificity the exemption which applies." G.L. c. 66, § 10 (c). The public has a right to know whether in addition to these enumerated exemptions, a large swath of records received by Massachusetts governmental entities could be hidden from the public through loan agreements between state and federal agencies.

Respectfully submitted,

RAHIMAH RAHIM,
By her attorneys,

/s/ Kate R. Cook
Kate R. Cook (BBO# 650698)
cook@sugarmanrogers.com
Tristan P. Colangelo (BBO #682202)
colangelo@sugarmanrogers.com
SUGARMAN, ROGERS, BARSHAK & COHEN, P.C.
101 Merrimac Street, Suite 900
Boston, MA 02114
(617) 227-3030
Matthew R. Segal (BBO# 654489)
msegal@aclum.org
Jessie J. Rossman (BBO# 670685)
jrossman@aclum.org
Laura Rotolo (BBO# 665247)
lrotolo@aclum.org
ACLU FOUNDATION OF MASSACHUSETTS, INC.
211 Congress Street
Boston, MA 02110
(617) 482-3170

Dated: November 26, 2019

CERTIFICATE OF COMPLIANCE

I hereby certify, under the penalties of perjury, that this brief complies with the Massachusetts Rules of Appellate Procedure that pertain to the filing of briefs and appendices, including, but not limited to:

- Rule 11(b) (applications for direct appellate review);
- Rule 16(a)(13) (addendum);
- Rule 16(e) (references to the record);
- Rule 18 (appendix to the briefs);
- Rule 20 (form and length of briefs, appendices, and other documents);
- Rule 21 (redaction).

Specifically, this brief was written in Times New Roman, 14 point font, and created on Microsoft Word (v. 2010). The number of non-excludable words contained in this application for direct appellate review is 1773.

/s/ Tristan P. Colangelo
Tristan P. Colangelo
November 26, 2019

CERTIFICATE OF SERVICE

Pursuant to Massachusetts Rule of Appellate Procedure 13(e), I hereby certify under the penalties of perjury, that on November 26, 2019, I have made service of this Application for Direct Appellate Review filed in the matter entitled *Rahimah Rahim v. Suffolk County District Attorney*, 2019-P-1602, currently pending in the Appeals Court via the Court's Electronic Filing System upon counsel for the Commonwealth:

Donna Patalano, Esq.
Assistant District Attorney for Suffolk County
One Bulfinch Place
Boston, MA 02114

/s/ Tristan P. Colangelo
Tristan P. Colangelo
November 26, 2019